BUSINESS & PROPERTY COURTS
ISSUED
11 FEB 2025
THE HIGH COURT OF JUSTICE

**IN THE HIGH COURT OF JUSTICE**
**BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES**
**TECHNOLOGY AND CONSTRUCTION COURT (KBD)**
**Claim No. HT-2025-000418**

B E T W E E N:

**HARROW PRECISION ENGINEERING LIMITED**

*Claimant*

- and -

**BREVDALE CASTINGS LIMITED**

*Defendant*

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# AMENDED PARTICULARS OF CLAIM

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## The parties

1. The Claimant ("Harrow") is a company incorporated in England and Wales (company number 03182994) which designs and manufactures industrial centrifugal pump units at its works at Brunel House, Worton Drive, Reading RG2 0TG.

2. The Defendant ("Brevdale") is a company incorporated in England and Wales (company number 04417326) which carries on business as an iron foundry and castings manufacturer at Brevdale Works, Attercliffe Road, Sheffield S9 3QY.

## The Supply Agreement

3. By a written agreement dated 9 January 2023 (the "Supply Agreement") Brevdale agreed to manufacture and supply to Harrow ductile-iron pump housing castings (part numbers HPE-PH-220 and HPE-PH-340) to Harrow's drawings and to specification HPE-MS-014 (Rev 4), for incorporation into Harrow's HX-Series centrifugal pump units. The Supply Agreement incorporated Harrow's standard conditions of purchase (Issue 6).

4. The Supply Agreement contained the following express terms, among others:

   (a) by clause 7.1, that all castings supplied would conform in all respects to specification HPE-MS-014 (Rev 4), including that all pressure-containing castings would be of ductile-iron grade EN-GJS-400-15 to BS EN 1563:2018 and would pass radiographic and dye-penetrant inspection to acceptance level 2 of BS EN 12681;


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(b) by clause 7.3, that the castings would be free from defects in materials and workmanship for a period of 24 months from the date of delivery;

(c) by clause 9.2, that Brevdale would, at its own cost, replace or make good any casting found to be non-conforming, and would indemnify Harrow against the reasonable costs of removing and reinstating any non-conforming casting incorporated into a finished unit;

(d) by clause 12, that Brevdale's aggregate liability under the Supply Agreement would not exceed 150% of the total price paid by Harrow in the 12 months preceding the relevant breach, save that nothing in the Supply Agreement limited liability for breach of clause 7.

5. There were further implied into the Supply Agreement the following terms by virtue of sections 14(2) and 14(3) of the Sale of Goods Act 1979:

(a) that the castings would be of satisfactory quality; and

(b) that the castings would be reasonably fit for the purpose for which they were supplied, namely incorporation into pressure-bearing centrifugal pump assemblies rated to a working pressure of 16 bar, that purpose having been made known to Brevdale.

## Performance and the defective deliveries

6. Between 4 March 2024 and 21 June 2024 Brevdale delivered 1,840 castings to Harrow against purchase orders HPE-PO-7741 to HPE-PO-7796 inclusive. Harrow paid Brevdale the sum of £611,200 in respect of those deliveries.

7. From about May 2024 Harrow began to receive reports from its own customers of weeping, pressure loss and premature failure of HX-Series pump units incorporating castings supplied by Brevdale in the relevant period.

8. Harrow instructed Wraysbury Materials Laboratory to carry out independent metallurgical examination of a representative sample of the castings. By its report dated 26 September 2024, Wraysbury Materials Laboratory concluded that 312 of the 400 castings examined (78%) contained sub-surface gas porosity and shrinkage cavities exceeding acceptance level 2 of BS EN 12681, and that the defects were caused by inadequate de-gassing and gating practice in Brevdale's foundry process. On the basis of that sampling, not fewer than 1,430 of the castings delivered in the relevant period are non-conforming ("the Defective Castings").

## Breach

9. In supplying the Defective Castings Brevdale acted in breach of the express terms pleaded at paragraph 5 above (in particular clauses 7.1 and 7.3) and of the terms implied by the Sale of Goods Act 1979 pleaded at paragraph 6 above.

10. **PARTICULARS OF BREACH**

(i) the Defective Castings were not of ductile-iron grade EN-GJS-400-15 in the pressure-containing regions, by reason of the porosity and shrinkage cavities present;

(ii) the Defective Castings failed radiographic and dye-penetrant inspection to acceptance level 2 of BS EN 12681;

(iii) the Defective Castings were not of satisfactory quality; and

(iv) the Defective Castings were not reasonably fit for incorporation into pressure-bearing pump assemblies rated to 16 bar, being liable to leak and fail in service.

## Loss and damage

11. By reason of the matters aforesaid Harrow has suffered loss and damage. The particulars of Harrow's loss are set out in the Schedule of Loss served with these Particulars of Claim. In summary, Harrow claims:

(e) the cost of procuring replacement conforming castings: £398,200;

(f) the cost of removing, stripping and rebuilding affected pump units, including the field recall of ~~214~~286 units delivered to end customers: £~~512,400~~648,900;

(g) carriage, inspection and disposal costs: £86,050; and

(h) Harrow's liability to its customer Stratton Energy plc for liquidated damages and a contractual rebate arising from the delayed and defective deliveries: £425,000,

12. making a total of £~~1,421,650~~1,558,150.

13. Further, Harrow claims interest on such sums as may be found due, pursuant to section 35A of the Senior Courts Act 1981, at such rate and for such period as the Court thinks fit.

## Relief sought

AND the Claimant claims:

14. Damages in the sum of £~~1,421,650~~1,558,150, alternatively damages to be assessed;

15. Interest pursuant to section 35A of the Senior Courts Act 1981, to be assessed;

16. Costs; and

17. Such further or other relief as the Court thinks fit.

**HARRIET STANFORD**

Eldon Chambers

## Statement of Truth

The Claimant believes that the facts stated in these Particulars of Claim are true. I am duly authorised by the Claimant to sign this statement.

Signed: .....

Name: Sarah Whitfield

Position: Partner, Whitfield Carter LLP, solicitors for the Claimant

Dated: 11 February 2025

*Served by Whitfield Carter LLP, 22 Bishopsgate, London EC2N 4BQ, solicitors for the Claimant.*